

TENTATIVE RULING:

After review of the papers, the Court **grants** the Application. The Court will sign the proposed order provided.

7. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE RE THOMAS J. KIRKHAM
FILED BY: HCR MANOR CARE SERVICES, LLC

TENTATIVE RULING:

After review of the papers, the Court **grants** the Application. The Court will sign the proposed order provided.

8. 9:00 AM CASE NUMBER: C25-00245
CASE NAME: SORN MOEUN VS. HIEU BALL, M.D.
GOOD FAITH SETTLEMENT ON BEHALF OF DEFENDANT HIEU T. BALL, MD
FILED BY: BALL, M.D., HIEU T.

TENTATIVE RULING:

Defendant Hieu Ball's motion for a good faith settlement determination is **denied without prejudice**. Defendant may renew his motion with additional information on past and future medical expenses and other information addressing the Court's concerns.

Plaintiffs sued for medical malpractice, alleging that Sorn was injured during spinal surgery. Montha (Sorn's wife) brought a loss of consortium claim. Dr. Ball performed the spinal surgery at San Ramon Regional Medical Center in October 2023.

Ball filed this motion for a good faith settlement determination. Defendant San Ramon Regional Medical Center opposes the motion. San Ramon argues that Plaintiff's potential recovery is \$17 million and that San Ramon could potentially be liable for Ball's actions (although San Ramon disputes this theory).

The party claiming that a settlement is not in good faith under Code of Civil Procedure §877.6 has the burden of proof on that issue. (*Tech-Bilt, Inc. v. Woodward-Cycle & Associates* (1985) 38 Cal.3d 488, 499 ("Tech-Bilt"); *City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261, 1264.) The party asserting that the settlement was not made in good faith must demonstrate that the settlement is "so far out of the ballpark in relation to [the *Tech-Bilt*] factors as to be inconsistent with the equitable objectives of the statute." (*Tech-Bilt, supra*, 38 Cal.3d at 499-500.) However, in order for the Court to make a factual determination that a settlement was made in good faith, the settling party must present sufficient admissible evidence that will allow the Court to evaluate the settlement in terms of the factors contemplated by *Tech-Bilt*. (*City of Grand Terrace, supra*, 192 Cal.App.3d at 1263.)

The criteria for the determination of a good faith settlement were originally set out by the